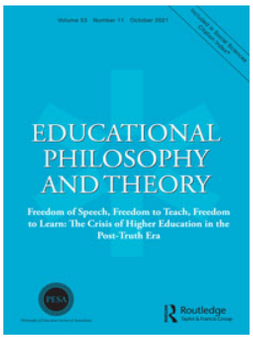

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Freedom of speech, freedom to teach, freedom to learn: The crisis of higher education in the post-truth era

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ABSTRACT

With increasing influence of illiberalism, freedom should not be considered or interpreted lightly. Post-truth contexts provide grounds for alt-right movements to capture and pervert notions of freedom of speech, making universities battlefields of politicised emotions and expressions (Peters et al., 2019). In societies facing these pressures around the world, academic freedom has never been challenged as much as it is today (Gibbs, 2019). As Peters and colleagues note (2019), conceptualisations of 'facts' and 'evidences' are politically, socially, and epistemically reconstructed in post-truth contexts. At the same time, with intelligence commodified, reified or marginalised, freedom of speech and of mobility can entail fights for entitlements, or escapes from local responsibilities (Calitz, 2018; Lo, 2019). The decline and corruptions of democratic free speech and academic freedom, or the absence of forces to defend them, are thus serious challenges. These challenges grow as the competition of ideas, sometimes under the rubric of academic freedom, often implies the power struggle and questioning of statuses in the so-called 'marketplace of ideas'. Competition as a value invoked in some conceptualisations of freedom, becomes more important than human dignity, which was originally supposed to expand and strengthen under democratic conceptions of freedom in higher education (Macfarlane, 2016). What had been happening to freedoms, of speech, teaching, and learning, across different subject positions and cultures of higher education, remains largely underexplored, as alt-right movements, neoliberalism and illiberalism, and post-truthism values and orientations expand.

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Freedom of speech has a lineage from Ancient Greece, transliterated as *parrhesia*, invoking *outspokenness* and *frankness*. *Freedom of speech* was claimed as a privilege by Athenian citizens. However, its use also included, in a bad sense 'license of tongue', and 'freedom of action' 'without fear' (Liddell, 1940). Foucault (1999), in a course of lectures given in 1983 at the University of California at Berkeley, is responsible for analysing 'the first occurrences of the word "parrhesia" in Greek literature, as the word appears in … six tragedies of Euripides.' Foucault wanted to problematize for moderns the political and ethical implications of 'free speech'. As Rick Benitez (2003, p. 334) suggests: 'It was Foucault's opinion that Euripides problematised parrhesia, and that this problematisation … made it possible for Western liberals in the late twentieth century to understand better both what he called "the crisis of democratic institutions" and "the care of the self."'

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Today, the alt-right claims freedom of speech in liberal societies, as a means of trading in 'hate speech', and encouraging others to adopt false and malicious ideas that fit with their worldview and threatened identity politics, to such an extent that their critics claim they have captured the language of freedom of expression to turn it back on liberal society to achieve their own political and racist goals. Importantly here, not all speech is constitutionally protected. Obscene material such as child pornography, plagiarism of copyrighted material, defamation (including libel and slander) and true threats are not protected under the US First Amendment. Lying (perjury) in court; hate speech; lying that causes people to panic; seditious speech that encourages terrorism; blasphemy; wearing religious clothing; and Holocaust denial, are examples of what is not normally permitted, although criteria of freedom of political speech have liberalised considerably in most societies in the last 50 years.

Relatedly, freedom to teach and freedom to learn (*lehrfreiheit and lernfreiheit*) have become imperatives of research universities that followed the Humboldtian model of higher education and shaped the benchmarks for reputational performance, competition and hierarchical stratification over the last few decades (Kwiek, 2005; Tierney & Lechuga, 2005). Yet freedom and responsibility have become a conflictual dichotomy in higher education, as markets and hierarchies evolved as domains shaping and distributing status goods in most societies (Kezar et al., 2015; Olssen & Peters, 2005; Tierney & Zha, 2014). Defining a good in the context of international higher learning has become also problematic, as freedoms of mobility, inquiry and argument implied strategising often in disregard of ethics, politics, and social discourses (Gibbs, 2016; Roepnack & Lewis, 2007). The literature in the field of higher learning has provided a range of examples where advantages for some threaten access to status goods worldwide (Oleksiyenko, 2019). Alas, the literature has provided little insight into how freedoms, of speech, to teach, and to learn, come into play with social responsibilities in cultural domains and political systems.

With increasing influence of illiberalism, freedom should not be considered or interpreted lightly. Post-truth contexts provide grounds for alt-right movements to capture and pervert notions of freedom of speech, making universities battlefields of politicised emotions and expressions (Peters et al., 2019). In societies facing these pressures around the world, academic freedom has never been challenged as much as it is today (Gibbs, 2019). As Peters et al. note (2019), conceptualisations of 'facts' and 'evidences' are politically, socially, and epistemically reconstructed in post-truth contexts. At the same time, with intelligence commodified, reified or marginalised, freedom of speech and of mobility can entail fights for entitlements, or escapes from local responsibilities (Calitz, 2018; Lo, 2019). The decline and corruptions of democratic free speech and academic freedom, or the absence of forces to defend them, are thus serious challenges. These challenges grow as the competition of ideas, sometimes under the rubric of academic freedom, often implies the power struggle and questioning of statuses in the so-called 'marketplace of ideas'. Competition as a value invoked in some conceptualisations of freedom, becomes more important than human dignity, which was originally supposed to expand and strengthen under democratic conceptions of freedom in higher education (Macfarlane, 2016). What had been happening to freedoms, of speech, teaching, and learning, across different subject positions and cultures of higher education, remains largely underexplored, as alt-right movements, neoliberalism and illiberalism, and post-truthism values and orientations expand.

As the waves of globalisation encourage rethinking these trends at local and global levels, we invited scholars from around the world to rethink the currency of ideas, concepts and practices related to dignity, freedom, independence, and responsibility in higher education and in other democratic institutions in the post-truth era. The questions we asked authors to ponder aimed at delving deeper into the context of tensions created by the concepts and practices of freedom in democratic higher education: e.g., What are the conditions of free speech in an open society? What are the limits of freedom of expression in a democracy? To what extent should free speech be encouraged and allowed in schools and universities? Are there sufficient freedoms to teach and to learn in modern colleges and universities these days? Do these freedoms as they are

perceived and/or practiced within and across diverse geographic contexts align effectively with requirements to support democracy and enhance human dignity? How do fundamental democratic freedoms, to speak, teach, and learn, get shaped by relationships, of students and scholars to structural aspects of higher education and the marketplace of ideas? What are the implications of the presence or absence of these freedoms in the post-truth world, and the expanding illiberalism and hybrid wars?

The papers presented in this special issue provide an intricate web of discourses spanning geopolitical and cultural domains. While delving into specific areas of higher education transformations (e.g., curriculum and student development, assessment, academic choices, intellectuality and leadership, culture, legacy and innovation, policy and administration), authors explore a wide range of perspectives in the concept and practice of academic freedom: e.g., inquiry-led learning; power asymmetries; gender biases; collaboration/conflict, performativity, epistemology, transitology, post-totalitarianism and neoliberalism. The papers open the discussion on several key dilemmas that persevere in spite of a presumably higher level of awareness and eagerness in academic communities to resolve them: e.g., misalignments between agendas of teaching, learning, and research; and proliferation of unintended consequences produced by neoliberal and alt-right promotions of freedoms for undemocratic purposes misaligned with human dignity. Across countries, contexts, cultures and institutions, and fields of knowledge we observe significant variations in interpretations of freedoms of speech, and freedom to teach, and to learn.

The following papers make significant efforts to amplify the discussion about these tensions, and generate a cross-cultural conversation on what produces challenges and where more inquiry and thought should be engaged to address them.

Christian Thompson explores how the university is confronted with growing intolerance, taking a case at a German university as a point of departure. Thompson shows how ideas of free speech following Kant, Mill, and Popper can also lead to an inversion of Enlightenment thought. The paper also explores the concept of higher education or *bildung,* in relation to academic freedom. The guiding principle is openness toward a pluralistic discourse that is to be framed by societal analysis, civility, and critique.

Benjamin Bindewald and Joshua Hawkins frame their essay by considering how those who value reasonable pluralism can navigate ethical and epistemological challenges related to speech and inquiry in higher education. They propose *t*he ethical pursuit of public knowledge as a guiding vision. The ethical criterion of mutuality calls for engagement across difference and reciprocal recognition of others' basic equality and liberty. To maintain epistemic legitimacy, knowledge-production processes should elevate ideas warranted by public reasons that have withstood rigorous critical scrutiny above those that have not. Some forms of speech—including the expression of extremist views on both the Right and the Left—will prove unreasonable and incompatible with the guiding vision and should therefore be marginalized (but not necessarily suppressed) within these institutions.

Anniina Leiviskä addresses how limits of free speech can be justified in a pluralistic public space such as a university campus, from the viewpoint of two complementary theoretical perspectives: Rainer Forst's respect conception of toleration, and the discourse theory of democracy, developed by Jürgen Habermas and Seyla Benhabib. These theories are argued to provide a non-arbitrary, impartial, and procedural model for determining the limits of free speech. Deriving primarily from the discourse model, Leiviskä suggests that the limits of freedom of expression on campus should be determined by collective deliberative processes. Moreover, this is argued to increase students' understanding of the nature of legitimate democratic discussion and thus accomplish the university's educational task of fostering students' ability to use their freedom of speech in a responsible way.

Nuraan Davis elaborates complexities and paradoxes of post-truth politics in the academia which is overwhelmed by hegemonic aspirations and losing faith in the idea of truth. Academic freedom is affected by inclinations of some institutions to shut down rather than open up in

pursuit of sanitized conversations and safe spaces. To mitigate such inclinations, academic freedom becomes an essential force in advancing democracy on campuses and making university 'an unafraid space'. Unconditionality of pro-democracy actions is however difficult to achieve in the contexts where policies and practices of truth-seeking are disfigured by social conflicts. Davis provides a range of impressive arguments and examples from the context of South African higher education to advocate the truth seeking mission of academia in her paper.

Chris Deneen and Michael Prosser delve into the challenges of correlating freedoms with innovation agenda in the university teaching and learning. Making change in curricula necessitates intellectual freedom – however, in the neoliberal contexts of evaluation and assessment (such as could be practiced in the academic space of Australasia) academic liberty is often thwarted by concerns of economic feasibility. Deneen and Prosser criticise the reconceptualisation of teaching freedoms within the market construct of 'students as customers'. By illustrating how the misapplications and misinterpretations of outcomes-based approach to student learning evolve, they urge to be vigilant about innovations that promote reductive approaches and increase regulative rather than emancipatory self-development.

Liz Jackson examines the paradoxes of student freedoms at the crossroads of the liberal philosophy of Kant, the critical pedagogy of Freire, existentialism, and the capabilities approach to development. She explores tensions between the student experiences in investigating and employing freedoms and the faculty members' pursuit of academic freedom. Her essay urges the reader to reconsider the assumptions that academic freedoms of students and faculty members are interdependent or equally feasible. The academic freedom as a common term in that regard is still constrained by structural formats of education as well as by the stakeholders' different perceptions of individual and social roles and responsibilities.

Michael Lanford shares his research-driven experiences from the US community college system, where teachers' perspectives are often shaped by premises that instruction is predominant and inquiry is rudimentary. Looking into the case of Florida state colleges, he raises a range of thought-provoking questions on practices of academic remediation which are shaped by performativity-oriented instruction rather than by inquiry-led learning. Lanford's criticism of competitive agendas and performance funding, which stifle liberty in education and research, is an important angle in the discourse exposing the problems of neoliberal higher education not only in the US but globally.

Bruce Macfarlane and Martin Erikson further advance the criticism of neoliberal perspectives in university teaching against the backdrop of a critically-significant question: Who has the right to teach in the academia? Does the professor who conducts no research have the right to teach? The authors investigate these questions within the framework of Humboldtian principles which are increasingly challenged by the conundrum of mass higher education. Drawing on experiences in the UK and Sweden, the authors explain how performative expectations of an over-optimistic university fail when professorial responsibilities are formalised and measured by research which is disconnected from teaching or by teaching which is disconnected from research. These binaries appear to be a subject to conflictual interpretations and precarious developments in the contexts that over-emphasise performativity.

While most of these papers are focused on post-industrial liberal democratic societies and higher education institutions, some alternative contexts are also explored in some articles, which reveal further tensions and significant challenges related both to theorising about practicing with regard to academic and intellectual freedom from a global view.

Anatoly V. Oleksiyenko explores the concept and practice of academic freedom within the post-Soviet space of higher education. He provides agonising examples on how transition from the highly regulated to open administrative systems of higher education challenges the rigid mindsets of professors who prefer to escape from freedom rather than to enable it. The interpretations of "freedom from" and "freedom to" are often twisted in the process of hybridization of teaching and learning shaped by conflicts between the Soviet legacy-holders who seek to secure

privileges granted by the totalitarian past and the neoliberal innovators who are entrapped in market failures and colonial dependencies. The "surrogate academic freedom" (SAFe) that emerges as a solution in these contexts, is often problematic as it reinforces the legacy of hollow-hearted truth telling.

Nian Ruan takes the discourse of academic freedom to the intricate context of Hong Kongonese academia. She explores how women conceptualize, protect and negotiate their rights and duties in pursuit of intellectual leadership in higher education. Her paper examines epistemological binaries (soft-hard, pure-applied, urban-rural) in the individual career trajectories, and provides in-depth analysis of gender biases and tensions handled by women in the neoliberal context. Academic freedom is arguably cherished by many ambitious women-academics; they do however face problems in protecting their rights for stronger voice and position in the context of intellectual leadership which prioritizes competition and performativity rather than collaboration and solidarity in defence of freedoms.

Unfortunately, Wisam Kh Abdul-Jabber's article does not appear in this issue. It can be read in Issue 53-12. *Foucauldian parrhesia and Avicennean contingency in Muslim education: The curriculum of metaphysics* examines the Foucauldian notion of 'parrhesia' within the context of curricular practices through a renewal of scholarly interest in Islamic metaphysics. This article argues that contingency, as a causality-oriented modality, determines whether meaning is relative or absolute, while necessity, as an acknowledgment of universal truth, slips into demagoguery that can be used to canonise strict textualism and absolutism. Contingency is defined here as a practice that stimulates synthesis and dialogical understanding of knowledge. From an educational position, the article introduces a curriculum of metaphysics that advocates the implementation of contingency, as considered essential to parrhesia and democracy. Abdul-Jabbar also draws attention to an anti-metaphysical attitude that is generally present in curriculum theorising.

Noah Romero explores free speech and its positions in punk rock pedagogy, or the educative dimensions of punk rock subculture, as an exemplar for combatting hate speech. This analysis contrast institutional efforts to protect free speech (which are rooted in free speech absolutism) with the ways by which punks protect one another from bigotry. This paper argues that the punk approach more closely reflects how free speech protections are framed in international human rights law.

The cross-cultural conversation created by disparate but complementary perspectives in these articles is both exciting and esteemed. As editors and co-contributors, we enjoyed the privilege of amplifying the discourse of academic freedom through the special issue in the *Education Philosophy and Theory*. As we continue to battle threatening challenges to democratic global higher education related to illiberal attacks on freedom to speak, to teach, and to learn, these articles will provide a bridge for further engagement of scholars, advocates, and practitioners advancing the idea of academic freedom.

Disclosure statement

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